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Case Number: 22STCV29169 Hearing Date: August 25, 2026 Dept: D

KARINA C. ORTEGA, AS

REPRESENTATIVE OF THE ESTATE OF LUIS MANUEL ORTEGA ALMANZA, ET AL. V. MICHELIN
NORTH AMERICA, INC. ET AL.

CASE NO.: 22STCV29169

HEARING: 08/25/26 @ 9:30 a.m.

#14

TENTATIVE ORDER

Defendant Win Chevrolet, Inc's
Motion for Summary Judgment is GRANTED.

Moving party to give notice.

Defendant Win Chevrolet, Inc.

(Defendant) moves for summary judgment as to the first cause of action for strict products liability and second cause of action for negligence or, alternatively, for summary adjudication of each cause of action on the grounds that Plaintiffs cannot establish triable issues of material fact.

Background

On September 7, 2022, Plaintiffs

Karina C. Ortega ("Karina"), as the representative of the Estate of Luis Manuel Ortega Almanza, Karina C. Ortega, individually, and Karina C. Ortega as

guardian ad litem for Samantha Amia Ortega ("Samantha") and Ellia Ortega ("Ellia") (collectively "Plaintiffs") filed the instant wrongful death and product liability action against Defendants Michelin North America, Inc. ("Michelin"), General Motors ("General"), Win Chevrolet, Inc. ("Win Chevrolet"), Courtesy Chevrolet Center ("Courtesy Chevrolet"), and Does 1 through 100 (collectively, "Defendants") for (1) strict product liability and (2) negligence. The Complaint alleges that on October 2, 2020, Luis Manuel Ortega Almanza ("Decedent") was killed in a single-vehicle rollover accident on Interstate 10 in Riverside County that resulted from a partial tread separation of the right rear tire. Karina, Samantha, and Ellia are the Decedent's wife and two minor children and his sole heirs. On March 1 and April 10, 2024, Karina was appointed as guardian ad litem for minors Samantha and Ellia.

On May 1, 2024, Plaintiff corrected the name of Defendant General Motors to General Motors, LLC ("GM"). (5-1-24 Amendment.) General Motors was dismissed from the case on October 25, 2024.

Defendants Michelin, GM, and Win Chevrolet filed Answers on May 23, June 10, and July 24, 2024, respectively.

On September 3, 2024, default was entered against Defendant Courtesy Chevrolet. On January 26, 2026, pursuant to the parties' stipulation, the Court set aside the default and Courtesy Chevrolet filed an Answer on February 20, 2026.

On May 30, 2025, the Court granted Defendant Michelin's Motion for Determination of Good Faith Settlement. Michelin was dismissed with prejudice on October 9, 2025.

On July 2, 2025, the Court granted the Petitions for Approval of Minor's Compromise of Disputed Claim, filed on behalf of Samantha and Ellia.

On March 11, 2026, Defendant Win Chevrolet filed the instant Motion for Summary Judgment ("MSJ"). No opposition has been filed. On August 6, 2026, Win Chevrolet filed a Notice of Non-Receipt of Opposition to MSJ.

On June 16, 2026, the Court approved the parties' stipulation to continue trial and continued the trial date to February 1, 2027, along with all pretrial dates and deadlines.

Legal Standard

A party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle him/her to judgment as a matter of law. (Code Civ.

Proc., § 437c, subd. (c).) The moving party must make an affirmative showing that he/she is entitled to judgment irrespective of whether or not the opposing party files an opposition. (Villa v. McFerren

(1995) 35 Cal.App.4th 733, 742-743.)

Thus, "the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519 (citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

When a plaintiff seeks summary judgment, he/she must produce admissible evidence on each element of each cause of action on which judgment is sought.

(Code Civ. Proc., § 437c, subd. (p)(1).)

When a defendant seeks summary judgment, he/she has the "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code of Civ. Proc., § 437c, subd. (p)(2).)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets his or her initial movant's burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.)

Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial.

(Code Civ. Proc., §437c, subd. (p).)

The opposing party may not simply rely on his/her allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted "if all the

evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to any alternative request for summary adjudication of issues, such alternative relief must be clearly set forth in the Notice of Motion and the general burden-shifting rules apply but the issues upon which summary adjudication may be sought are limited by statute. (Code Civ. Proc., § 437c(f)(1).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Ibid.)

Analysis

Defendant's Evidence

Defendant Win Chevrolet relies on the following evidence in support of its motion:

1) Declaration

of defense counsel Jessica Lauro with attached exhibits:

a.

Exhibit A: Plaintiff Karina Ortega's Responses to Special Interrogatories Propounded by Defendant GM.

b.

Exhibit B: California Highway Patrol's Traffic Collision Report of the 2020 accident.

c.

Exhibit C: Plaintiff Karina Ortega's, as the representative of the Estate of Luis Manuel Ortega Almanza, Amended Responses to Request for Admissions (Set 1) Propounded by Defendant Win Chevrolet.

d.

Exhibit D: Plaintiff Karina Ortega's, as
the representative of the Estate of Luis Manuel Ortega Almanza, Amended
Responses to Request for Production of Documents (Set 1) Propounded by
Defendant Win Chevrolet.

e.

Exhibit F: Carfax Vehicle History Report.

f.

Exhibit G: Plaintiff Karina Ortega's
Amended Responses to Request for Admissions (Set 1) Propounded by Defendant Win
Chevrolet.

g.

Exhibit H: Plaintiff Karina Ortega's, as
the representative of the Estate of Luis Manuel Ortega Almanza, Supplemental
Responses to Special Interrogatories (Set 1) Propounded by Defendant Win
Chevrolet.

h.

Exhibit I: Allied Solutions, LLC's
Response to Deposition Subpoena for Production of Business Records.

2) Declaration

of Datevig Apelian, custodian of records for Win Chevrolet, with Exhibit E:
Subject Vehicle Information.

3) Declaration

of Kenneth Pearl, retained expert for Win Chevrolet with attached exhibits:

a.

Exhibit J: Crash Data Retrieval ("CDR")
system data for Subject Vehicle.

b.

Exhibit K: Michelin Technical Bulletin.

c.

Exhibit L: Published articles and

specifications for the subject 35X12.50R17 BF Goodrich MudTerrain T/A KM2 tire.

Defendant presents the following

undisputed facts. On October 2, 2020, Decedent

was involved in a fatal car accident ("2020 Accident"). (UMF No. 1.)

At the time of the 2020 Accident, Decedent was driving a 2009 GMC Sierra

C1500, VIN 1GTEC14X39Z223152 (the "Truck") with the following four tires: Goodrich

Mud-Terran T/A KM, Radial Tubeless, Load Range D tire, size LT 35x12.50R17,

bearing DOT No. BE1B CF11 0912 ("Subject Tires"). (UMF Nos. 2-3.) Defendant GM manufactured, designed, sold,

and placed into the stream of commerce the Truck and Defendant Michelin manufactured,

designed, and placed into the stream of commerce the Subject Tires. (UMF Nos. 4-5.) The Subject Tires were manufactured around

the 9th week of 2012 (approximately February 28, 2012). (UMF No. 6.)

On June 19, 2013, Decedent bought the Truck as a certified used vehicle

from Defendant Courtesy Chevrolet, along with the Subject Tires. (UMF Nos. 8-9.) Defendant Win Chevrolet did not manufacture,

design, or sell the Subject Tires to Decedent or Plaintiff Karina Ortega. (UMF Nos. 7, 19.) At the time of purchase, there were 63,901

miles on the Truck. (UMF No. 10.)

Around September 8, 2014,

Defendant Win Chevrolet serviced the Truck ("2014 Service") and did not service

the Truck after this date. (UMF Nos.

11-12.) There were 93,767 miles on the

Truck during the 2014 Service. (UMF No.

13.) There is no evidence that Win Chevrolet

serviced the Subject Tires during or after the 2014 Service. (UMF Nos. 14-15.) As part of the 2014 Service, Win Chevrolet changed

the engine oil, checked the tire pressure, and rotated the tires. (UMF No. 16.)

There were no recalls on the Truck or Subject Tires during the 2014

Service. (UMF Nos. 17-18.) Plaintiffs cannot establish that Win Chevrolet

negligently serviced the Truck or the Subject Tires. (UMF No. 20.)

Furthermore, around December

2017, the Truck was in another accident ("2017 Accident"). (UMF No. 21)

Decedent reported to his insurance that, while exiting a highway, he

"lost control" of the Truck and "hit the pole."

(UMF No. 22.) The 2017 Accident

resulted in front end and tire damage to the Truck and deployed airbags. (UMF Nos. 23-24.) Due to the 2017 Accident, Allied Solutions

deemed the Truck a "loss." (UMF No.

26.) On January 23, 2018, Allied

Solutions filed a "Salvage Vehicle Notice of Retention by Owner" to the DMV. (UMF No. 25.)

Plaintiff Karina Ortega told California Highway Patrol ("CHP") that

Decedent "made the necessary repairs" and "was constantly working on his truck

during his off time." (UMF No. 27.) Karina Ortega admits that she told CHP that

the Truck "had, in the past, been salvaged."

(UMF No. 28.)

During or before the 2020

Accident, the VIN number affixed to the driver's side door was different from

the Truck's VIN number, the seatbelt was defective, and the airbag system for

the steering wheel and passenger dashboard were inoperable. (UMF Nos. 29, 31.) The Right Rear Subject Tire delaminated,

causing the tread to separate. (UMF No.

32.) After the 2020 Accident, the

Subject Tires had a tread depth exceeding 1/32nd. (UMF No. 33.)

CHP found that "the tread depths for all four tires were not low enough

to be a danger for routine driving conditions."

(UMF No. 34.)

The Subject Tires were

defectively designed because "there was no discernable damage to the viewable

area of the tire which could have caused the separation" and "the tread had not

worn down to the 'wear bars...'" (UMF No.

35.) There was no visible evidence of

accelerated wear or other conditions on the Subject Tires which would have

indicated that there was an internal separation of the tread and tire casing. (UMF No. 36.)

The actual amount of tread available on the Subject Tires when they were

new is 18/32nd of an inch. (UMF No.

37.) The Subject Tires had a 50,000 mile

treadwear warranty. (UMF No. 38.) The Subject Tires would have approximately

36,114 miles of usage at the 2020 Accident.

(UMF No. 39.) The last recorded

mileage of the Truck per CARFAX is on September 4, 2019 at 171,094 miles. (UMF No. 40.)

Strict Product Liability

Defendant Win Chevrolet moves for

summary judgment or summary adjudication of the strict products liability claim

on the basis that it did not design, manufacture, sell, or place the Truck or

Subject Tires into the stream of commerce and; therefore, cannot be held

strictly liable.

"A manufacturer, distributor, or retailer is liable in tort if a defect in the manufacture or design of its product causes injury while the product is being used in a reasonably foreseeable way. [Citation.]" (Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 560.) "Generally, the imposition of strict liability hinges on the extent to which a party was 'responsible for placing products in the stream of commerce.' When the purchase of a product 'is the primary objective or essence of the transaction, strict liability applies even to those who are mere conduits in distributing the product to the consumer.' In contrast, the doctrine of strict liability is ordinarily inapplicable to transactions 'whose primary objective is obtaining services,' and to transactions in which the 'service aspect predominates and any product sale is merely incidental to the provision of the service.' Thus, '[i]n a given transaction involving both products and services, liability will often depend upon the defendant's role.'" (Hernandezcueva v. E.F. Brady Co., Inc. (2015) 243 Cal.App.4th 249, 258, internal citations omitted.)

Here, the evidence presented by Defendant Win Chevrolet establishes that it did not design or manufacture the Truck or the Subject Tires. The Truck was manufactured by Defendant GM and the Subject Tires were manufactured by Defendant Michelin. Decedent purchased the Truck and Subject Tires from Defendant Courtesy Chevrolet in June 2013. Defendant Win Chevrolet did not sell the Subject Tires to Decedent or Plaintiffs.

The sole connection between Win Chevrolet and the Truck or Subject Tires is the 2014 Service, during which Win Chevrolet changed the engine oil, checked tire pressure, and rotated the tires. Win Chevrolet did not service the Truck after September 8, 2014.

Moreover, Plaintiffs have not presented evidence that the Subject Tires were on the Truck during the 2014 Service. Based on the evidence presented by Win Chevrolet, it is unlikely that the Subject Tires were present on the Truck at the time of the 2014 Service.

At the time of the 2014 Service, the Truck had 93,767 miles and by September 2019, the Truck had 171,094 miles, which means that the Truck had accumulated 77,327 miles between 2014 and 2019. At the time of the 2020 Accident, the Subject Tires had approximately 36,114 miles

of usage and a 50,000 mile treadwear warranty.

If the Subject Tires had been on the Truck at the time of the 2014 Service, they would have accumulated over 77,327 miles by the 2020 Accident, exceeding the treadwear warranty. Yet the tread depth at the 2020 Accident was not worn to the wear bars and showed no discernible damage. Thus, the “natural deductions of these facts evidence that the Subject Tires could not have been on the Truck at the 2014 Service.” (MSJ, p. 4.)

Defendant also argues that Plaintiffs cannot establish that Win Chevrolet failed to warn Decedent about a defect in the Subject Tires. “California is well settled into the majority view that knowledge, actual or constructive, is a requisite for strict liability for failure to warn.” (Anderson v. Owens-Corning Fiberglas Corp. (1991) 53 Cal.3d 987, 1000.) Here, Defendant has presented evidence that there were no recalls on the Truck or Subject Tires as of the 2014 Service and no visible evidence of a defect or damage. Plaintiffs themselves assert that, at the time of the 2020 Accident, “there was no discernable damage to the viewable area of the tire which could have caused the separation” and CHP confirmed that the tread depths were “now low enough to be a danger for routine driving conditions.” (Ex. A at 13:6-8, Ex. B.) Therefore, even if the Subject Tires were on the Truck in 2014, Defendant would have no reason to warn Decedent about any defects or unsafe conditions.

The Court finds that Defendant Win Chevrolet has met its burden of demonstrating that it did not manufacture, design, distribute, or sell the Truck or Subject Tires or place them in the stream of commerce. Defendant Win Chevrolet has also met its burden of showing that there is no evidence that it had actual or constructive knowledge of any defect that would require it to warn Decedent at the time of the 2014 Service. Given that Plaintiffs have not filed any evidence in opposition, the Court finds that there is no triable issue of material fact as to the strict liability cause of action.

Negligence

Defendant Win Chevrolet moves for summary judgment or summary adjudication of Plaintiffs' negligence claim,

arguing that Plaintiffs cannot demonstrate that (1) Defendant Win Chevrolet serviced the Subject Tires, (2) was negligent in performance of the 2014 Service, and that (3) any alleged negligence was a substantial factor in causing the 2020 Accident.

The elements for a cause of action for negligence are (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) The existence and scope of duty are legal questions for the court. (*Annocki v. Peterson Enterprises* (2014) 232 Cal.App.4th 32, 36.) "The six policy factors which must be balanced in determining the scope of a particular defendant's duty of due care include: (1) the foreseeability of harm to the plaintiff; (2) the degree of certainty that plaintiff suffered injury; (3) the closeness of connection between the defendant's act and the plaintiff's injury; (4) the moral blame attached to defendant's conduct; (5) the policy of preventing future harm; and (6) the extent of defendant's burden and the consequences to the community of imposing a duty and liability. [Citation.]" (*Valdez v. J. D. Diffenbaugh Co.* (1975) 51 Cal.App.3d 494, 506.) One who has exclusive charge of the inspection and repair of a product may be held to have the same duties and liabilities as the manufacturer of the product. (*Dahms v. General Elevator Co.* (1932) 214 Cal. 733, 737.)

Defendant Win Chevrolet argues that Plaintiffs cannot establish that it serviced the Subject Tires at the time of the 2014 Service. As discussed in the previous section, based on the calculation of how many miles the Truck accumulated between 2014 and 2019 and the evidence of treadwear and warranty, it is very unlikely that the Subject Tires were on the Truck at the time of the 2014 Service.

Moreover, Defendant argues that, assuming it did service the Subject Tires, Plaintiffs cannot establish negligence under the negligence per se theory. Defendant argues that Vehicle Code sections 27465 and 27501, which prohibit dealers from selling or installing tires with insufficient tread depth or that fail to comply with safety regulations, do not apply to tire rotation during routine service and require installation in connection with a sale. (See *Alcala v. Vazmar Corp.* (2008) 167 Cal.App.4th 747.) Plaintiffs also cannot establish any act or omission by Defendant Win Chevrolet under a common

law negligence theory as there is no evidence that Win Chevrolet serviced the Subject Tires, had any actual or constructive knowledge of any defects, or that the Subject Tires had any discernable, visible damage at the time of the 2014 Service.

Finally, Defendant argues that Plaintiffs cannot establish that Win Chevrolet's negligence was the actual or legal cause of the 2020 Accident. To demonstrate causation, a "plaintiff must show that the defendant's act or omission was a 'substantial factor' in bringing about the injury." (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 774.) "Under the theory of supervening cause, the chain of causation that would otherwise flow from an initial negligent act is broken when an independent act intervenes and supersedes the initial act." (Hardison v. Bushnell (1993) 18 Cal.App.4th 22, 27.)

Defendant argues that Plaintiffs cannot present evidence connecting any alleged negligence during the 2014 Service to the 2020 Accident. The Truck was driven for six years and more than 77,000 additional miles after the 2014 Service. If Win Chevrolet had been negligent in 2014, any manifestation of that negligence would have appeared much earlier. Moreover, the 2017 Accident constitutes an independent, intervening event that breaks the chain of causation between the 2014 Service and the 2020 Accident. The 2017 Accident caused severe damage to the Truck and the Truck was deemed a total loss by the insurance company. By the time of the 2020 Accident, the Truck had been substantially damaged and extensive repairs had been undertaken—the driver's side door had a different VIN, the seatbelt was defective, and the airbag system was inoperable.

The Court finds that Win Chevrolet has demonstrated that Plaintiffs cannot establish that they breached a duty to Plaintiffs and that this breach was the proximate cause of the 2020 Accident. Given that Plaintiffs have not filed any evidence in opposition, the Court finds that there is no triable issue of material fact as to the negligence cause of action.

Accordingly, the Motion for Summary Judgment is GRANTED.

Conclusion

Based on the foregoing, Defendant

Win Chevrolet's Motion for Summary Judgment is GRANTED.